

providing
transport
services in
the Western
Highlands
and Islands
of Scotland.

shall be lawful for the Minister of Transport, after consultation with the Secretary of State, by order, to authorise any railway company therein specified to hold shares, stock or debentures in or of any such company so incorporated to such amount as may be specified in the order, and on any such order being made, the railway company so authorised may, notwithstanding anything contained in any enactment, subscribe for, take and hold such shares, stock or debentures to such amount as aforesaid, and may, with the assent of the Minister of Transport and of such company, provide in the Western Highlands and Islands of Scotland any such services as aforesaid by sea, air or land which it would have been competent for such company to provide, and may apply for or towards the purposes of any power conferred in pursuance of this subsection any sums of money which such railway company have raised or may raise in pursuance of any enactment and which are not required for the purposes to which they are by such enactment made specially applicable.

(2) Any order made under the foregoing subsection may, on application by the railway company, be amended or varied by a subsequent order.

Short title.

2. This Act may be cited as the Western Highlands and Islands (Transport Services) Act, 1928.

CHAPTER 7.

An Act to authorise the sale of the telegraph undertakings established under the Pacific Cable Acts, 1901 to 1924, and the West Indian Islands (Telegraph) Act, 1924, and of certain submarine telegraph undertakings in the possession of the Postmaster-General, and to make provision for certain matters incidental thereto.

[5th February 1929.]

17 & 18
Geo. 5. c. 9. **W**HEREAS by the Pacific Cable Acts, 1901 to 1924, which were consolidated with amendments by the Pacific Cable Act, 1927, the Pacific Cable Board (in this Act referred to as "the Board") was constituted

for the construction and working of a trans-pacific cable undertaking (in this Act referred to as "the Pacific Cable undertaking") :

And whereas the Treasury in pursuance of the powers conferred by the said Acts borrowed from the National Debt Commissioners for the purpose of defraying the cost of construction of the said undertaking certain money (in this Act referred to as "the Pacific Cable loan"), which is repayable under the provisions of the said Acts by means of terminable annuities charged on and payable out of the Consolidated Fund of the United Kingdom or the growing produce thereof :

And whereas it was arranged that any sums required for the repayment of the Pacific Cable loan and for the annual expenses of the Board, so far as not covered by receipts, should be ultimately provided by the several Governments (in this Act referred to as "the partner Governments") mentioned in the First Schedule to the Pacific Cable Act, 1927, and represented on the Board in the proportions mentioned in that Schedule, and that any profits of the Board should be divided between the partner Governments in the same proportions :

And whereas in pursuance of the West Indian Islands (Telegraph) Act, 1924, the Treasury borrowed from the National Debt Commissioners for the purpose of defraying the costs of the construction or provision of a certain cable and wireless telegraph undertaking in the West Indian Islands (in this Act referred to as "the West Indian undertaking") certain other money (in this Act referred to as "the West Indian Telegraph loan") which is repayable under the provisions of the last-mentioned Act by means of terminable annuities charged on and payable out of the Consolidated Fund of the United Kingdom or the growing produce thereof : 14 & 15
Geo. 5. c. 14.

And whereas it was arranged that any sum required for the repayment of the West Indian Telegraph loan and for the annual expenses of working the West Indian Undertaking should, so far as not covered by receipts, be ultimately provided by the Governments of the various parts of His Majesty's dominions mentioned in the Schedule to the last-mentioned Act in the proportions therein specified and that any profits arising from the working of that undertaking should be divided between those Governments in the same proportions :

And whereas the Board in pursuance of section eight of the Pacific Cable Act, 1927, have undertaken as agents the management of the West Indian undertaking :

And whereas the Postmaster-General possesses two transatlantic cable undertakings (hereinafter referred to as "the Imperial Transatlantic Cable undertakings") :

And whereas a Conference of representatives of the partner Governments and of certain other Governments of His Majesty's dominions and colonies was appointed to examine the situation which had arisen as a result of the competition of the Beam Wireless with the Cable Services, to report thereon and to make recommendations with a view to a common policy being adopted by the various Governments concerned :

And whereas it was recommended by the said Conference that a company to be formed (called by the said Conference and hereinafter referred to as "the Communications Company") should take over, as from the first day of April, nineteen hundred and twenty-eight, the Pacific Cable undertaking, the West Indian undertaking and the Imperial Transatlantic Cable undertakings :

And whereas it was further recommended by the said Conference that the Communications Company should pay certain capital sums for the said undertakings and should also assume responsibility for the payment of the annuities created to repay the Pacific Cable loan :

And whereas it is expedient to enable the said recommendations to be carried into effect and to make provision for certain matters incidental thereto :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Sale of
Pacific Cable
under-
taking.

1. The Board, with the consent of and on terms approved by all the partner Governments, may sell the Pacific Cable undertaking to the Communications Company as from the first day of April, nineteen hundred and twenty-eight, and if the recommendations aforesaid

with respect to the said undertaking are carried into effect the following provisions shall come into operation :—

- (a) The amount of the share of His Majesty's Government in the United Kingdom in the capital sum paid by the Communications Company for the said undertaking (including any interest payable thereon) shall be paid to the Treasury ;
- (b) All sums paid by the Communications Company on account of the annuities created to repay the Pacific Cable loan shall be paid to the National Debt Commissioners and applied by them in discharge of the said annuities, but the said annuities shall, unless provided for as aforesaid or otherwise, continue to be charged on and paid out of the Consolidated Fund of the United Kingdom or the growing produce thereof ;
- (c) Sections three, four, five, six and seven of the Pacific Cable Act, 1927, shall be deemed to have been repealed as from the thirty-first day of March, nineteen hundred and twenty-eight :
 Provided that nothing in this repeal shall affect the operation of the said sections in relation to anything required to be done in relation to the year ending on the date aforesaid.

2. The Board, acting as agents as aforesaid, may, with the consent of and on terms approved by the Governments mentioned in the Schedule to the West Indian Islands (Telegraph) Act, 1924, sell the West Indian undertaking to the Communications Company as from the first day of April, nineteen hundred and twenty-eight, and if the recommendations aforesaid with respect to the said undertaking are carried into effect the following provisions shall come into operation :—

Sale of
West
Indian un-
dertaking.

- (a) The capital sum paid by the Communications Company for the said undertaking shall be paid to the National Debt Commissioners and shall be applied by the Commissioners in reduction of the West Indian Telegraph loan, and as from the date of such payment the annuities created to repay that loan shall be re-calculated and reduced accordingly ;

(b) The said annuities, re-calculated and reduced as aforesaid, shall, unless otherwise provided for, continue to be charged on and paid out of the Consolidated Fund of the United Kingdom or the growing produce thereof;

(c) Sections one, three, four and five of the West Indian Islands (Telegraph) Act, 1924, shall be deemed to have been repealed as from the thirty-first day of March, nineteen hundred and twenty-eight:

Provided that nothing in this repeal shall affect the operation of the said sections in relation to anything required to be done in relation to the year ending on the date aforesaid.

Dissolution
of Pacific
Cable Board.

3.—(1) If the Pacific Cable undertaking and the West Indian undertaking are taken over as aforesaid, then, as from the appointed day, the whole of the Pacific Cable Act, 1927, and the West Indian Islands (Telegraph) Act, 1924, shall be repealed and the Board shall be dissolved:

Provided that nothing in this repeal shall affect the said arrangement for the ultimate provision by the Governments mentioned in the Schedule to the West Indian Islands (Telegraph) Act, 1924, of any sums required for the repayment of the West Indian Telegraph loan.

(2) The appointed day for the purposes of this section shall be such day as may be fixed by Order of His Majesty in Council.

Sale of the
Imperial
Trans-
atlantic
Cable un-
dertakings.

4. The Postmaster-General may sell to the Communications Company the Imperial Transatlantic Cable undertakings as from the first day of April, nineteen hundred and twenty-eight, on such terms as the Treasury may approve and any sums paid by the said Communications Company as the price of the said undertakings shall be paid to the Treasury.

Short title.

5. This Act may be cited as the Imperial Telegraphs Act, 1929.
